

24STCV23670 24STCV23670

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Case Number: 24STCV23670 Hearing Date: July 21, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV23670

MAYA

KOGAN BY AND THROUGH HER SUCCESSOR-IN-INTEREST, SAMAIL KOGAN, et al. vs
GRANADA HILLS CONVALESCENT HOSPITAL, INC.

July

21, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT LUDMILA ELGOURT, M.D.'S DEMURRER TO PLAINTIFF'S COMPLAINT.

RULING:

The Court overrules the
Demurrer.

Judicial notice is
denied.

Twenty
days to answer.

Plaintiff to give notice.

I.

BACKGROUND

On September 13, 2024, MAYA
KOGAN, SAMAIL KOGAN, IRINA BRANDALIS, and MARINA KOGAN AKOPNIK, (Plaintiffs) filed
a Complaint against GRANADA HILLS CONVALESCENT HOSPITAL, INC. (Defendant),
listing Causes of Action for:

1.

ELDER ABUSE/NEGLECT (Pursuant to Welfare and Institutions Code
§§15657 & 15610.57);

2.

NEGLIGENCE;

3.

VIOLATION OF RESIDENT'S RIGHTS (Pursuant
to Health and Safety Code § 1430); and

4.

WRONGFUL DEATH.

Plaintiffs allege that MAYA
KOGAN (Deceased) was a dependent elder who suffered preventable
injuries, including pulmonary embolism, cerebral edema, anoxic brain
encephalopathy, multiple infections and death, and who Defendant convalescent
hospital had neglected and denied.

LUDMILA ELGOURT, M.D. (Defendant)

filed the Demurrer to the Complaint, as to the Cause of Action for Elder Abuse, and the DOE Amendment.

July 8, 2026, Plaintiff filed

the Request for Dismissal of the First Cause of Action for Elder Abuse/Neglect, rendering moot as to that part of the Demurrer filed on June 22, 2026.

Plaintiffs oppose the

Demurrer as to the remaining issues of DOE timeliness and prejudice, based upon arguments such as that the Complaint does not reveal the applicable factors.

II.

LEGAL STANDARD

Demurrers

are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879-880.)

Plaintiffs

are not required to address and anticipate affirmative defenses in their pleadings, unless already revealed. (E.g., *Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 825.) “[A] demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense.” (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 78-79.)

“A demurrer can be

sustained based on the statute of limitations or other limitations period only if the facts alleged in the complaint, or matters of which judicial notice is taken, disclose “ ‘ clearly and affirmatively ’ ” that the cause of action is barred.” (*City of Indus. v. City of Fillmore* (2011) 198 Cal App.4th 191, 207 [“may challenge that determination in this action.... The factual questions regarding the accrual of the causes of action cannot be decided on demurrer.”].) “A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred’.... It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred.... This will not be the case unless the complaint alleges

every fact which the defendant would be required to prove if he were to plead the bar of the applicable statute of limitation as an affirmative defense.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 881. Accord, State of Cal. ex rel. Metz v. CCC Information Services, Inc. (2007) 149 Cal.App.4th 402, 413.)

“If the complaint merely discloses the lapse of a long period of time without affirmatively showing or necessarily implying any injury to the defendant therefrom, it does not show laches on its face, and a demurrer should not be sustained.” (Barndt v. County of L.A. (1989) 211 Cal.App.3d 397, 403, fn.1.)

III.

ANALYSIS

Defendant contends that the DOE Amendment, filed on May 14, 2026, was untimely and filed after the one-year Statute of Limitations expiration applicable to professional negligence claims against Defendant.

Plaintiffs counterargue that, in the Demurrer procedure, Defendant cannot establish that, beyond just the identity, Plaintiffs knew of the culpability of Defendant at the time of the filing of the Complaint.

Charging allegations against DOE defendants to the effect that each is responsible in some manner for alleged occurrences supporting causes of action, are sufficient, and no more is required. (Winding Creek v. McGlashan (1996) 44 Cal.App.4th 933, 941-942. Fireman's Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1143.)

A plaintiff properly can file a DOE amendment, under Code of Civil Procedure section 474, where the plaintiff lacks knowledge of the defendant's connection with the case or with the injuries, even if the plaintiff knew the defendant's identity. (McOwen v. Grossman (2007) 153 Cal.App.4th 937, 942.)

“Section 474 allows a plaintiff in good faith to delay suing particular persons as named defendants until [she or] he has knowledge of sufficient facts to cause a reasonable

person to believe liability is probable.” (GM Corp. v. Superior Court (1996) 48 Cal.App.4th 580, 595.) “[S]ection 474 does not impose upon the plaintiff a duty to go in search of facts she does not actually have at the time she files her original pleading.” (GM Corp. v. Superior Court (1996) 48 Cal.App.4th 580, 596. Accord, McOwen v. Grossman (2007) 153 Cal.App.4th 937, 943.)

DOE defendants may challenge the DOE amendment in an evidence-based motion showing plaintiffs’ unreasonable delay in filing DOE amendments after learning of the DOE defendant’s identity, and prejudice to the defendant caused by the delay, which is reviewed for abuse of discretion. (A.N. v. County of L. A. (2009) 171 Cal.App.4th 1058, 1067.) To preclude relation back via a DOE amendment based upon delay in identifying a DOE defendant, opposing parties must show that plaintiffs were dilatory, and that defendants were prejudiced by the delay. (Winding Creek v. McGlashan (1996) 44 Cal.App.4th 933, 943.)

The filing of a valid DOE amendment means that the amendment relates back to the time of the original complaint’s filing, where based on allegations that the fictitious defendant was responsible for the injuries. (Winding Creek v. McGlashan (1996) 44 Cal.App.4th 933, 942.) The filing of a valid DOE amendment means that the amendment relates back to the time of the original Complaint’s filing, for purposes of analyzing the Statute of Limitations. (Woo v. Superior Court (1999) 75 Cal.App.4th 169, 176.) “[S]ection 474 is not to be confused with the statute of limitations.” (McOwen v. Grossman (2007) 153 Cal.App.4th 937, 942, 947.)

Here, the face of the Complaint does not state that Plaintiffs knew Defendant’s connection with alleged injuries, especially given that understanding medical negligence typically involves medical experts having specialized medical knowledge that others lack. Additionally, the Complaint does not address whether Plaintiffs unreasonably delayed and caused prejudice to Defendant.

Furthermore, the Court denies Defendant’s Requests for Judicial Notice of evidence consisting of a Motion for Summary Judgment, medical records, and a doctor’s declaration. “The hearing on demurrer may not be turned into a contested evidentiary hearing

through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (Johnson v. Honeywell Intern. Inc. (2009) 179 Cal.App.4th 549, 559-560.) “[J]udicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.” (Unruh-Haxton v. Regents of Univ. of Cal. (2008) 162 Cal.App.4th 343, 365.)

Lastly, the Court reasons that the Complaint does not include the elements needed to ascertain unreasonable delay of the DOE Amendment and defense of laches.

Therefore, the expiration of the Statute of Limitations is not revealed, where the DOE Amendment relates back to the time of the Complaint’s filing.

IV.

CONCLUSION

The Court overrules the Demurrer.